

Presented by Sumter County Citizens for Transparency

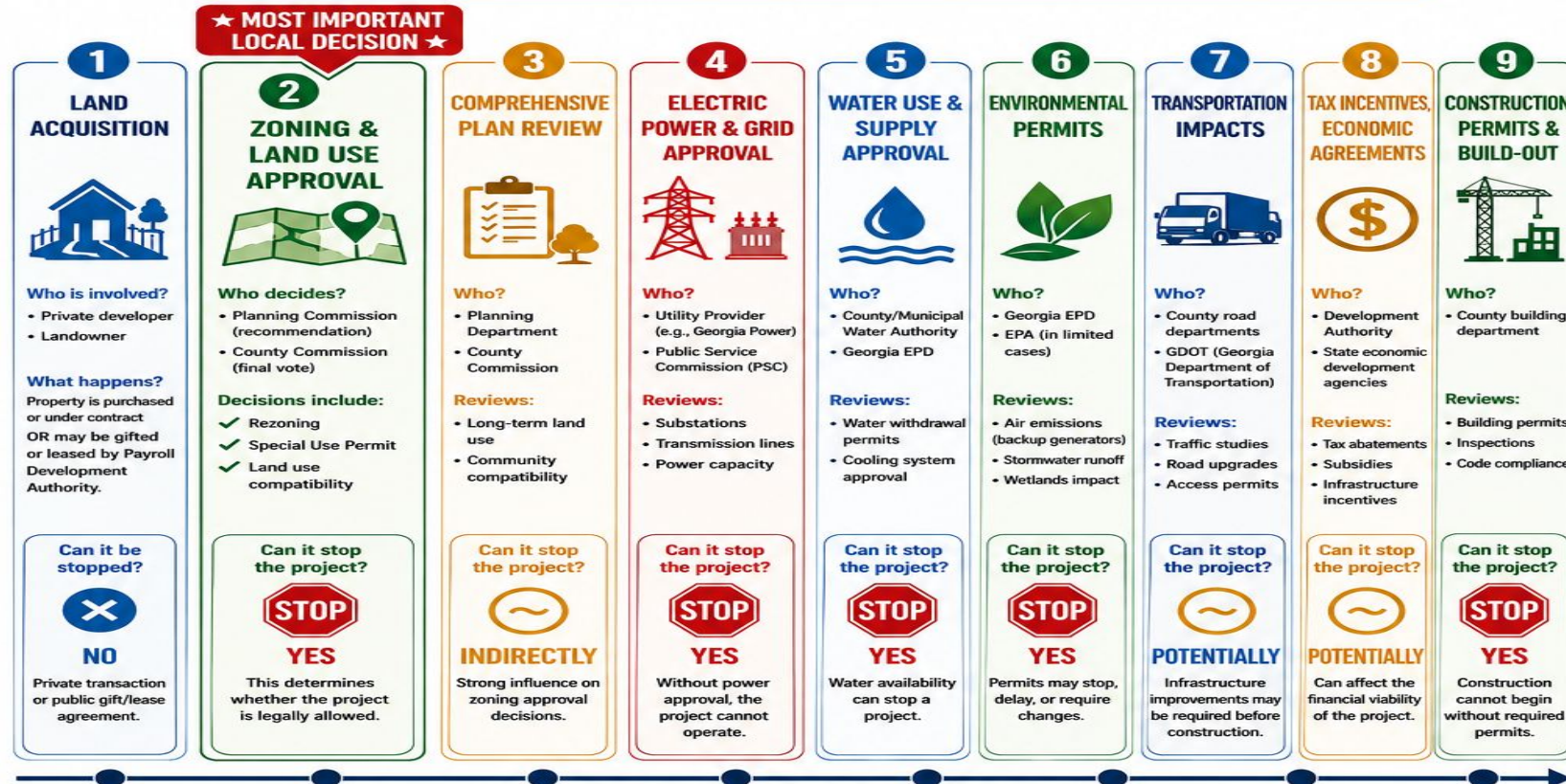
BETTER GOVERNMENT

THE STEPS REQUIRED TO BUILD A DATA CENTER

DATA CENTER APPROVAL PROCESS

HOW A DATA CENTER PROJECT MOVES FROM IDEA TO CONSTRUCTION

A PROJECT MUST PASS THROUGH MULTIPLE APPROVAL STAGES BEFORE CONSTRUCTION CAN BEGIN.



FOUR MAJOR DECISION GATES



BEFORE CONSTRUCTION CAN BEGIN

A proposed data center generally must have:



EDUCATIONAL SUMMARY

If any major approval category fails, the project may be delayed, modified, or stopped.

Is Sumter County ready for a large data center?

WE ARE NOT
READY.

ANNOUNCING AN 18-MONTH EXTENDABLE MORATORIUM PETITION.

THIS WILL ALLOW
OFFICIALS TIME TO DO A
JOINT CITY-COUNTY DATA
CENTER ORDINANCE
WITH CONSULTANTS AND
PUBLIC INPUT

WHY IS A MORATORIUM NEEDED NOW?

We are greatly concerned about the long-term ramifications on the **health and well-being of residents** located within close proximity to 'Hyper-scale AI computing Data Centers' as well as the potential detrimental effects on our **aquifers**, a resource we all share and rely on for the enjoyment of life.

A moratorium can, and should, be put in place while ordinances are created, reviewed, made available for public comment, and then approved.

18-MONTH EXTENDABLE MORATORIUM WILL ALLOW THE CITY AND COUNTY TO DEVELOP A STRONG DATA CENTER ORDINANCE TO PROTECT OUR COMMUNITY.

PLEASE MOVE TO ENACT A MORATORIUM, AND PLEASE DO IT QUICKLY.

Any Council member can **make a motion** to enact a Moratorium. The resolution must be available at the time of the motion, and any council member **may second the motion**. The Mayor also has this ability. Furthermore, a **Special Session** could be called to address this impending issue. We encourage you to consider a **Special Session**.

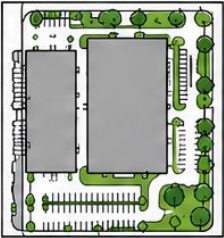
Learn more at  **THE SOWEGA AQUIFER ALLIANCE** | bigbaddatacenters.com/ 

PROMISES CAN CHANGE DURING DATA CENTER BUILDS. — AND THEY DO. —

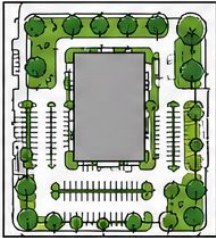


PLANS CHANGE

ORIGINAL PLAN



REVISED PLAN



Site layouts, building size, setbacks, landscaping and more can be modified.

IMPACTS CAN CHANGE



WATER

Usage and systems can change.



NOISE

Noise levels and mitigation can change.



GENERATORS

Locations, types and numbers can change.



COOLING

Cooling systems and technology can change.

PROMISES CAN CHANGE. AND THEY DO.



What's promised early is not always what gets built.



OUR STUDY IS LOOKING AT

50–100

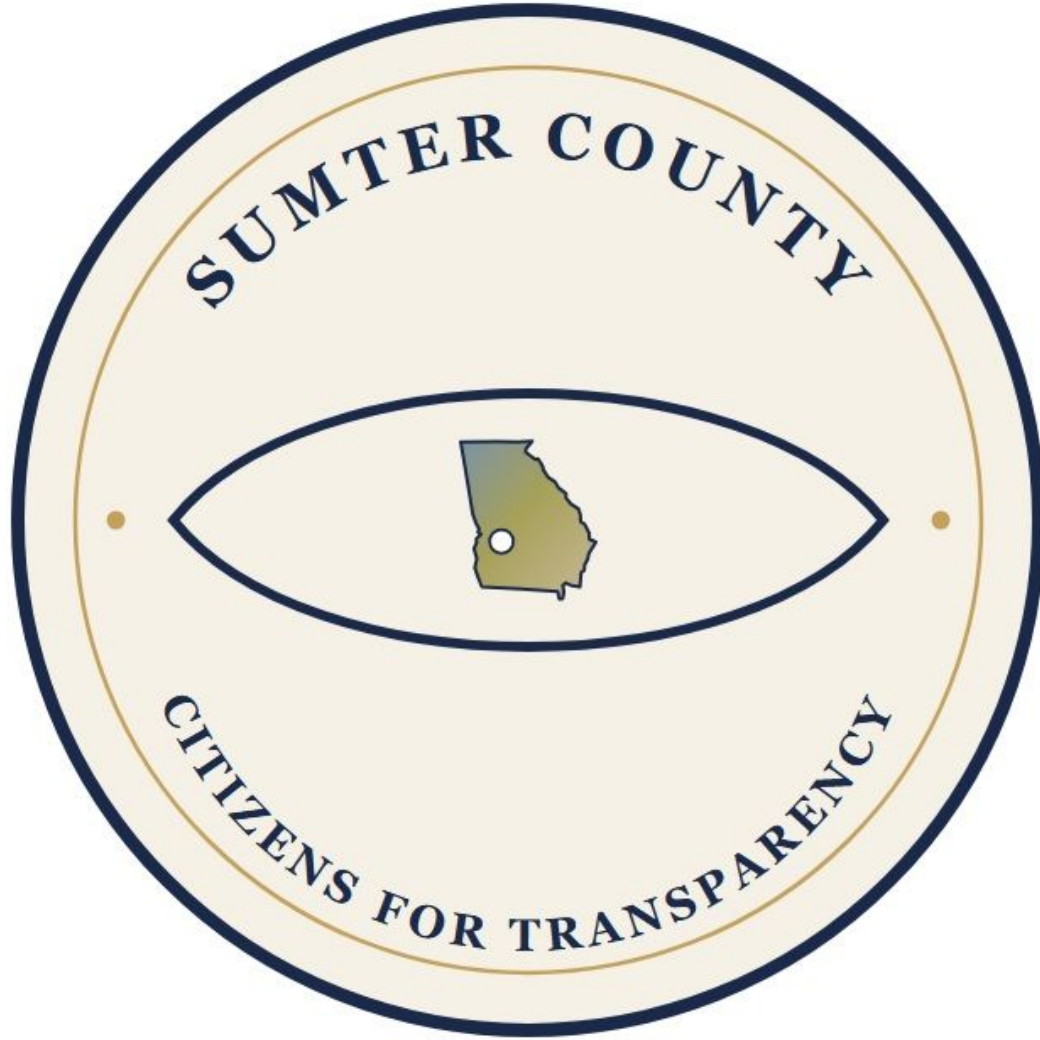
DOCUMENTED U.S. CASE STUDIES

- ✓ Original site plans and revised plans
- ✓ Dates of each revision
- ✓ Planning commission and council actions
- ✓ Water, noise, generator, and cooling changes



THE GOOD OLD BOY NETWORK IS BOTH A STRENGTH AND A WEAKNESS IN OUR COMMUNITY

*BTW we have no women on the City Council and the County Commissioners... are we missing out on talent and wisdom?



THE GOOD OLD BOY
NETWORK...

**often begins with
good intentions,
but over time
develops some
bad habits when it
comes to
government
transparency.**

OUR POSITION: SUNSHINE LAWS WERE VIOLATED



PUBLIC LAND TRANSFERS TO DATA CENTERS: What Georgia Law Requires

1962 Constitution Amendments • Open Records Act • Open Meetings Act

1. 1962 CONSTITUTION AMENDMENTS THAT STILL AFFECT LOCAL TAXATION & COUNTY POWERS

These amendments continue to influence how counties handle taxes, budgets, and redevelopment.

AMENDMENT	HOW IT STILL MATTERS TODAY
 #2 County Grants	Allows the General Assembly to provide grants to counties under specified conditions.
 #3 Budget & Appropriations	Establishes budgeting controls and biennial budgeting—still governs how state and local budgets are managed.
 #6 Legislative Review of Expenditures	Gives the General Assembly more time to review state spending—still impacts oversight of local and state expenditures.
 #7 Property Tax Equalization	Authorizes counties & municipalities to borrow to fund property valuation & equalization—still used for ad valorem tax fairness.
 #14 Slum Clearance	Authorizes counties to undertake slum clearance & urban redevelopment—still the foundation for redevelopment authorities and projects.

 **BOTTOM LINE:** Amendments #2, #3, #6, #7, and #14 continue to shape county powers over taxes, budgets, grants, and redevelopment.

2. NDA DOES NOT OVERRIDE THE GEORGIA OPEN RECORDS ACT

A nondisclosure agreement (NDA) cannot override the law.

-  **1. NDA Cannot Override the Law**
Public agencies cannot contract away the public's right to records. If a record is public, an NDA does not make it confidential.
-  **2. Limited Exemptions Exist**
During active negotiations, certain records may be withheld if they contain proprietary info, trade secrets, financial projections, site-selection materials, or other competitive information.
-  **3. Once a Deal Is Approved, Much Becomes Public**
Agreements, deeds, leases, bond resolutions, meeting minutes, PILOTs, and incentive approvals are generally public (with only lawful redactions for trade secrets).
-  **4. Agencies Must Cite a Specific Exemption**
If records are withheld, the agency must identify the specific legal exemption. A blanket "it's under an NDA" is not enough.
-  **5. Why This Matters**
The development agreement shows the public benefit, obligations, clawbacks, and consideration. Without it, the public cannot judge whether the transfer violates the constitutional prohibition on gratuities.

3. WHEN CAN A TRANSFER BE DISCUSSED IN CLOSED EXECUTIVE SESSION?

 **WHAT CAN BE DISCUSSED BEHIND CLOSED DOORS (Executive Session)**

- Authorize negotiations to purchase, dispose of, or lease property
- Order an appraisal
- Enter into a contract that requires later public approval
- Enter into an option agreement subject to later public approval

Reason: Confidential negotiations protect the government's bargaining position.



 **WHAT CANNOT HAPPEN BEHIND CLOSED DOORS**

- Final vote to sell, lease, or transfer public property
- Approve a development agreement
- Approve incentive packages
- Decide final terms permanently without public disclosure

Georgia law requires a subsequent open vote with disclosure of the property and essential terms.

 **MEETING & NOTICE REQUIREMENTS STILL APPLY**

- Proper public notice must be given
- Agenda process must be followed
- Agency must state for reentering meeting session
- Minute must reflect the reuse

Executive session is for negotiation, not for making final, hidden decisions.

4. ACCOUNTABILITY CHECKLIST FOR A PUBLIC LAND TRANSFER

Ask these questions to determine whether the process was lawful and transparent.

 1 Did the authority vote publicly to approve the transfer?	 5 Did the authority document the public benefit?
 2 Was the property identified before the vote?	 6 Are the developer obligations enforceable, or just promises?
 3 Were the transaction terms disclosed before the vote?	 7 Were clawbacks included if the project fails?
 4 Was an appraisal obtained?	

5. KEY TAKEAWAY

 Negotiations may happen in private. Decisions must happen in public.

 NDA ≠ Secrecy. The Open Records Act provides the standard.

 Transparency protects the public, the project, and the integrity of government.

 Public land is a public trust—Georgia law demands accountability.

Open Meetings Protect Public Decisions • Open Records Protect Public Information • Transparency Protects Our Community

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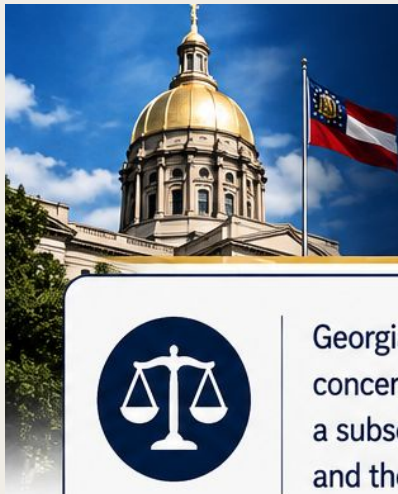
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Georgia Open Meetings Law: Real Estate Decisions Must Be Public



Georgia law specifically provides that a vote taken in executive session concerning acquisition, disposal, or leasing of real estate is **not binding** until a subsequent open-meeting vote occurs where the identity of the property and the terms of the transaction are disclosed.

- ✓ A subsequent vote is held in an **open public meeting**
- ✓ The **identity of the property** is disclosed
- ✓ The **terms of the transaction** are publicly disclosed



ALLOWED



"We need to discuss whether to negotiate with Company X and what terms we should seek."

Purpose: Confidential discussion and negotiation strategy.



NOT ALLOWED



"We decided in executive session to give Company X 300 acres owned by the authority for \$1."

Reason: Final decisions involving public real estate must be approved in an open meeting with full public disclosure.



KEY TAKEAWAY

Discussion may occur behind closed doors, but **final approval** of public land transactions **must occur in public**.



GEORGIA OPEN MEETINGS ACT – THE BASIC RULES

O.C.G.A. § 50-14-1

The law requires government meetings to be **OPEN** to the public.

RULE	PRIVATE MEETINGS	QUORUM	NOTICE	
 1. OPEN TO THE PUBLIC	 None. Deliberations and votes must be in public.	 A quorum must be present to conduct business.	 Notice of the meeting must be given.	
 2. NOTICE REQUIRED	 No private notice. All meetings must be noticed.	 Less than a quorum may not discuss, deliberate, or vote.	 Notice must be reasonable and timely.	



Did any business occur at the Windsor social event?



WHY ECONOMIC PROMISES CANNOT BE SPECULATIVE



Public land and taxpayer assets must be exchanged for **real, enforceable benefits**—not just hopeful promises.

The taxpayer owned land was gifted to Liberty GA USA, LLC recorded in the Sumter County Courthouse on 7/23/2026

Liberty GA USA, LLC was newly incorporated in Georgia on 6/16/2026.

SPECULATIVE PROMISES ARE NOT ENOUGH



- Future plans and intentions
- Estimates and projections
- “We expect to invest...”
- “We anticipate creating jobs...”
- No legal obligation to perform

RESULT: Hopes, not protection.
Taxpayers take all the risk.

ENFORCEABLE COMMITMENTS ARE REQUIRED



- Legally binding obligations
- Measurable investment requirements
- Job creation commitments
- Performance deadlines
- Clawbacks and remedies if promises are not met

RESULT: Accountability and real public benefit.
The public is protected.

Possible Gratuities Prohibition Violations To Be Explored

WHY THIS MATTERS



1. CONSTITUTIONAL REQUIREMENT

The Georgia Constitution prohibits giving away public assets.



2. PUBLIC ACCOUNTABILITY

Citizens have the right to know and evaluate the benefits promised.



3. PREVENTS RISK TO TAXPAYERS

Without enforceable terms, the public bears all the risk if the project fails.



4. ENSURES FAIR VALUE

Public assets should be exchanged for benefits that are real, enforceable, and measurable.



PUBLIC ASSETS ARE A TRUST. PROMISES ARE FREE.
ENFORCEABLE OBLIGATIONS PROTECT OUR COMMUNITY.

8/1/2026

THINGS DON'T
ALWAYS GO THE
WAY WE HOPED



Sumter County Payroll Department

Citizen Scorecard Worksheet

**REPORT
CARD**

PROMISED		ACTUAL (As of July 2026)	
2021	Americus Solar/NanoPV \$ \$36,000,000 investment promised 500–2000 jobs promised Source: Gov. Kemp: Solar Tech Company NanoPV to Open Manufacturing, Distribution Operations in Sumter County, Create Over 500 Jobs / Governor Brian P. Kemp Office of the Governor	\$	Actual investment \$ _____ Actual number of jobs _____
2021	Tamarack Foods \$ \$10,000,000 investment promised 150–200 jobs promised Source: Tamarack_Foods_Announces_Construction_Completion_with_Open_House_01.pdf	\$	Actual investment \$ _____ Actual number of jobs 130 Jobs A
2022	Quarry Dynamics/Bitcoin Mining \$ \$10,000,000 investment promised 16–20 jobs promised Source: West Central Enduring Action, Economic Edge March 30, 2022 and Operations – Quarry Dynamics Inc.	\$	Actual investment \$ _____ Actual number of jobs _____
2022	Hardee Fresh/Americus Fresh \$ \$42,000,000 investment promised 84 jobs promised Source: West Central Enduring Action, Economic Edge March 30, 2022	\$	Actual investment \$ _____ Actual number of jobs _____
2026	Liberty GA USA, LLC \$ \$1,000,000,000+ investment promised 125 permanent jobs promised No press release or public hearings, but we know Americus–Sumter Payroll Development gave them 125 acres of public land.	\$	Actual investment \$ _____ Actual number of jobs _____
GRADE KEY A Delivered as promised B Partially delivered C Fell short F No transparency / Not delivered		NOTES & OBSERVATIONS _____ _____ _____ _____	

★ Transparency today. Accountability tomorrow. Results for Sumter County. ★



DO DATA CENTERS DELIVER THE TAX REVENUE THEY PROMISE?

The Evidence Says:
It **Depends** on Tax Incentives



While there are surprisingly few peer-reviewed studies comparing promised tax revenue with actual tax revenue received, a growing body of government audits, legislative reviews, and academic research has examined this question. **The findings are mixed—and one factor matters most: tax abatements.**

GEORGIA STUDY (2025)



KEY FINDINGS

- ✓ A representative Metro Atlanta data center generated **4.8x more** property tax revenue than was abated.
- ! **HOWEVER...** Some projects received very large local property tax abatements, substantially reducing the fiscal benefit to local governments.

“The primary benefit these facilities have on the state or local economy is tax revenue. However, fiscal benefits are significantly reduced when governments abate a large portion of those taxes.”
— Georgia Department of Audits and Accounts

THE CRITICAL QUESTION



BEFORE APPROVING ANY DATA CENTER, ASK:

- What taxes are being promised?
- How much will be abated?
- What will the county actually receive?
- How long do the abatements last?
- Who benefits—and who pays the price?

Promises Matter. Actual Revenue Matters More.

TOOLS TO PROTECT THE COMMUNITY FROM TRAVELING SALESMEN

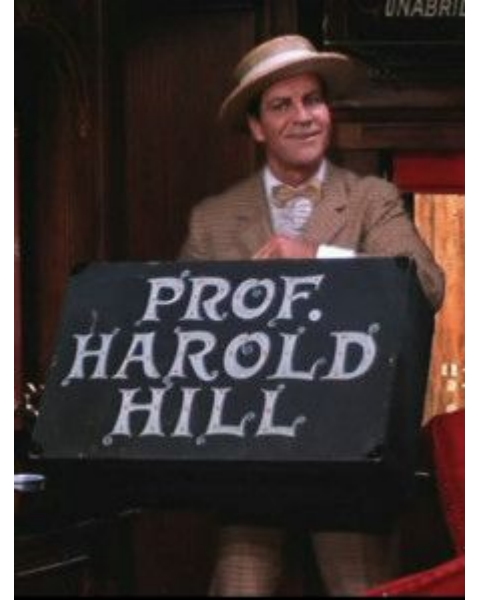
Require a job performance bond idea

Estimated jobs		125
Times Avg Salary	X	<u>\$85,000</u>

10 Year Bond Required \$10,625,000

If things don't work out, at least the community will have some money to clean up the mess

*Simply requiring Liberty to buy the land at market price if they don't build isn't enough. They should have been required to complete the Environmental Review and Community Review before the land was gifted.





Who signed NDAs?

It is inherently a conflict of interest to create regulatory oversight of a revenue generating entity.



Non-Disclosure Agreement Signed



Participant in Decision-Making or Oversight



Conflict of Interest



Public Trust Compromised



For example: The City Manager should be recused from the Zoning Board.

Transparency requires accountability. Accountability requires recusal.

WE NEED YOUR HELP TO MAKE GOVERNMENT BETTER



YOUR THOUGHTS AND FEARS *ARE VALID.*



YOUR QUESTIONS ARE *GOOD ONES.*



YOUR OPINION SHOULD BE *HEARD AND RESPECTED.*



We all have a lot to learn
IN THIS RAPIDLY CHANGING WORLD.



LISTEN. LEARN. RESPECT.



TOGETHER, WE BUILD A STRONGER COMMUNITY.